

BEFORE THE PROCUREMENT REVIEW COMMITTEE (PRC)  
BALUCHISTAN PUBLIC PROCUREMENT REGULATORY AUTHORITY, QUETTA

PRC Appeal No.18/2025

M/s Jaffar Brothers Government Contractor,  
Through Counsel,  
Attaullah Khan Jaffar.

... Appellant

VERSUS

1. Secretary, Urban Planning & Development Department, Civil Secretariat, Quetta.
2. Chief Engineer, Urban Planning & Development Department, Zhob Division.
3. Executive Engineer, Urban Planning & Development Department at Loralai.
4. M/s Abdul Malik & Brothers.

... Respondents

Quorum

1. Habib ur Rehman Jamot.....MD BPPRA / Chairman
2. Mubashir Ali Khan (FCIPS).....Procurement Specialist (Goods & Services) BPPRA / Member
3. Junaid Shah.....Procurement Specialist (Works) BPPRA /Member
4. Iftikhar Ahmed Mir..... Retd. Chief Engineer /Technical Member
5. Abdul Hayee Baloch.....Advocate /Private Member

**DECISION DATED 7<sup>th</sup> November 2025**

This Appeal has been filed under **Rule 56-A of the Baluchistan Public Procurement Rules, 2014** against the decision of the **Complaint Redressal Committee (CRC)** against the TSE-25260881699 for the work titled "*Construction and Rehabilitation of Road from Killi Marki to Killi Landi, Musakhail*" PSDP # 6121 (2025-26)", having an estimated cost of Rs. 74.25 million.

**Brief Facts:**

1. The Appellant avers that he is a government contractor under the name *M/s Jaffar Brothers*, holding a valid PEC license in Category C-1, regularly paying income tax and enlisted with various public departments.
2. A tender notice was published vide **PRQ No. 731/21-08-2025** by Respondent No.3, consisting of (4) four TSE. The Appellant participated in the bidding process for the aforementioned work, claiming fulfillment of all procedural and documentary requirements, including submission of call deposit and tender fee through proper challan.
3. The technical bids were opened, and the **Bid Evaluation Report** subsequently uploaded by the department showed that the Appellant was **disqualified on the ground that "No date was mentioned on the affidavit/stamp paper (of Blacklisting and Pending Litigation)"**.
4. The Appellant contends that this ground is factually incorrect, as the submitted affidavit *does contain the date* printed on the reverse side of the stamp paper, and therefore the disqualification is arbitrary and without lawful justification.
5. The Appellant approached the **Complaint Redressal Committee (CRC)** for rectification, but no relief was granted and the CRC failed to decide the matter despite

## Proceedings before PRC:

Notice was issued to all Respondents. The official Respondents appeared and sought time to submit a written reply. Despite final opportunity, **no reply was filed till last hearing**, and their right to file the same was accordingly closed. However after it the Respondent No.1,2 & 3 submitted a collective reply. The private Respondent No.4 failed to appear and was proceeded **ex-parte**.

## Points for Determination:

After perusal of record and hearing the Appellant, the following issues arise for determination:

1. Whether the disqualification of the Appellant on the ground of "no date on stamp paper" was lawful and justified?
2. Whether the Appellant fulfilled the substantive eligibility and responsiveness requirements of the bidding document?
3. What relief, if any, the Appellant is entitled to?

## Findings and Reasons:

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1. The CRC failed to decide the grievance duly received by the office of the Director (Technical) within the stipulated timeframe, thereby denying the Appellant a timely remedy as provided for under the rules.
  2. The Committee after examining the bids submitted at the ePPS, including the affidavits submitted by all bidders, observed that the stamp papers used for the affidavits were identical and verified by the notary. The Committee uncovered that the affidavit submitted by the lowest evaluated bidder was executed on an undated stamp paper, a deficiency that was not consistently applied as a ground for disqualification against other bidders.
  3. The Committee finds that the Procuring Agency failed to uphold its obligation under Rule 4 of the Balochistan Public Procurement (BPP) Rules to ensure a fair and transparent procurement process. The evidence before the Committee indicates a pattern of conduct that unfairly favored certain bidders.
  4. The Committee further notes that the Balochistan Public Procurement Regulatory Authority (BPPRA) has consistently directed Procuring Agencies to avoid imposing unnecessary documentary requirements and to ensure that procurement processes promote competition, rather than disqualifying bidders on trivial or non-material grounds.
  5. The Committee affirms the established principle that minor clerical or technical irregularities, which do not materially affect the substance of a bid or confer an unfair advantage, should not be grounds for disqualification. This principle is fundamental to the objectives of fairness, transparency, and competition enshrined in the Balochistan Public Procurement Rules, 2014.
  6. Pursuant to Rule 35(1) of the BPP Rules, a Procuring Agency is bound to evaluate tenders strictly in accordance with the criteria prescribed in the bidding documents. The Committee finds that the Procuring Agency materially deviated from the established evaluation criteria, thereby invalidating the integrity of the evaluation process.
  7. In light of Findings 1, 2 and 3, the action of Respondent No. 3 in declaring the Appellant's bid non-responsive on the basis of a purely trivial and non-material irregularity was unjustified, disproportionate, and contrary to the spirit of transparent competition mandated by the BPP regulatory framework.

## Decision:

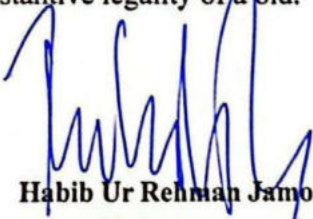
The Committee finds the Procuring Agency's actions to be indefensible. Having established that the stamp paper irregularity was minor and non-material, the Agency's decision to disqualify the Appellant while simultaneously accepting the identical submission from the awarded bidder (Respondent No. 4) constitutes a grave and fundamental breach of procurement principles. This selective application of rules severely prejudices the Appellant and irreparably taints the entire evaluation process with unfairness.

The Procurement Review Committee hereby allows the appeal. The Committee holds that the Procuring Agency acted arbitrarily by disqualifying M/s Jaffar Brothers for a defect while ignoring the identical defect in the bid of its preferred bidder, Respondent No. 4. This inconsistent application of the rules renders the Technical Evaluation Report unlawful. The said Report and the subsequent contract award to Respondent No. 4 are hereby set aside and declared void.

In case, the Procuring Agency has made any payment to Respondent No. 4 against the impugned contract, this Committee clarifies, that any such payment made during the pendency of a complaint in violation of the Public Procurement Legal Framework was made at the Procuring Agency's own risk and without legal cover.

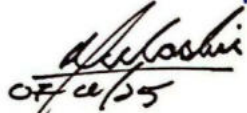
The Procuring Agency shall, in consultation with the relevant administrative department and legal counsel, determine the legal and financial implications of reversing the award of Contract, and shall report compliance to this Committee within fifteen (15) days of this Order. Nothing in this Order shall preclude disciplinary or administrative action against those responsible for prematurely awarding and operationalizing the contract in violation of statutory provisions.

The matter is remanded to the Procuring Agency with the directive to re-examine the technical bid of M/s Jaffar Brothers, disregarding the non-material defect, in a manner consistent with the principles of fairness and substantial compliance. A Compliance Report detailing the re-evaluation must be submitted to this Committee within seven (07) days. The Agency is further directed to ensure that future disqualifications are not based on inconsequential procedural defects that do not impact the substantive legality of a bid.

  
Habib Ur Rehman Jamot

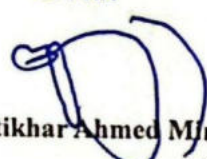
Chairman  
Government of Balochistan  
Public Procurement Review Committee  
(B-PPRA)

7/11/2025

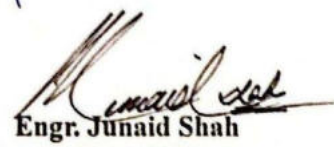
  
07/11/25

Mubashir Ali Khan (FCIPS)

Member  
Procurement Review Committee  
BPPRA

  
07/11/2025

Iftikhar Ahmed Mir  
Member  
Procurement Review Committee  
BPPRA

  
Engr. Junaid Shah

Member  
Procurement Review Committee  
BPPRA



Abdul Hayee Baloch, Advocate

Member  
Procurement Review Committee  
BPPRA